



CHAPTER cxxx.

An Act to confirm a Provisional Order of the Local A.D. 1914.
Government Board relating to Chippenham.

[31st July 1914.]

WHEREAS the Local Government Board have made the
Provisional Order set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 9) Act 1914.

A.D. 1914.

S C H E D U L E.

BOROUGH OF CHIPPENHAM.

Chippenham *Provisional Order made in pursuance of the Local Government*
Order. *Act 1888 for extending a Borough.*

To the Mayor Aldermen and Burgesses of the Borough of
Chippenham ;—

To the Justices of the Peace for the County of Wilts in
Quarter Sessions assembled ;—

To the County Council of Wilts ;—

To the Rural District Council of Chippenham ;—

To the Guardians of the Poor of the Chippenham Union ;—

To the Parish Councils of Chippenham Without Lacock and
Langley Burrell Without ;—

To the Chairman of the Parish Meeting of the Parish of
Hardenhuish ;—

To the Overseers of the Poor of each of the Parishes of Chip-
penham Within Chippenham Without Hardenhuish Lacock
Langley Burrell Within and Langley Burrell Without ;

To the Joint Committee appointed by the Council of the Borough
of Chippenham and the Parish Council of Chippenham Without
and exercising the powers and duties of the Authority under
the Burial Acts 1852 to 1906 ;—

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough ;

And whereas the Borough of Chippenham in the County of Wilts
is a Borough within the meaning of the Local Government Act 1888
and the inhabitants are a body corporate by the name of the Mayor

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. cxxx.]
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Aldermen and Burgesses of the Borough of Chippenham and act by the Council of the said Borough which now consists of the Mayor (who is also an Alderman) three other Aldermen and twelve Councillors; A.D. 1914.
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And whereas the said Borough comprises the Parishes of Chippenham Within and Langley Burrell Within and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the unrepealed provisions of a Local Act passed in the fourth year of the reign of His late Majesty King William the Fourth intituled "An Act for lighting watching cleansing paving and otherwise improving the Town of Chippenham in the County of Wilts" and of the Local Government Supplemental Act 1871 so far as that Act relates to the Provisional Order dated the Thirteenth day of July One thousand eight hundred and seventy are in force in the said Borough; 4 Will. IV.
c. xlvii.

34 Vict. c. i.

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890; and

53 & 54 Vict.
c. 34.

(b) Parts II. and III. of the Public Health Acts Amendment Act 1890;

53 & 54 Vict.
c. 59.

are in force in the said Borough;

And whereas the Parishes of Chippenham Without and Langley Burrell Without in the County of Wilts immediately adjoin the said Borough and the Parish of Hardenhuish in the said County immediately adjoins the Parishes of Chippenham Without and Langley Burrell Without and all those parishes and the Parish of Lacock in the said County are contributory places in the Rural District of Chippenham and are subject to the jurisdiction of the Rural District Council of Chippenham and three Rural District Councillors are elected for the Parish of Chippenham Without two Rural District Councillors are elected for each of the Parishes of Lacock and Langley Burrell Without and one Rural District Councillor is elected for the Parish of Hardenhuish;

And whereas certain of the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

And whereas the Parishes of Chippenham Within Chippenham Without Hardenhuish Lacock Langley Burrell Within and Langley Burrell Without are included in the Chippenham Union and the Parish of Chippenham Within is represented by four Guardians and the Parish of Langley Burrell Within is represented by one Guardian on the Board of Guardians of that Union and the eight Rural District

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A.D. 1914. Councillors elected for the Parishes of Chippenham Without Lacock
Chippenham Langley Burrell Without and Hardenhuish are the representatives of
Order. those Parishes on the said Board of Guardians;

56 & 57 Vict. And whereas the Parishes of Chippenham Without Lacock and
c. 73. Langley Burrell Without are Rural Parishes within the meaning of
the Local Government Act 1894 for which Parish Councils have been
established;

2 Edw. 7. And whereas in pursuance of the Education Act 1902 the said
c. 42. Borough and Parishes form part of the area of the County Council of
Wilts as the local education authority;

15 & 16 Vict. And whereas by virtue of sub-section (2) of Section 53 of the Local
c. 85. Government Act 1894 the powers and duties of the Authority under the
6 Edw. 7. Burial Acts 1852 to 1906 for the area now comprised in the said
c. 44. Parishes of Chippenham Within and Chippenham Without were trans-
ferred to the Council of the said Borough and the Parish Council of
Chippenham Without and the said powers and duties are exercised by
a Joint Committee appointed in pursuance of the said section;

And whereas the Parish Council of the said Parish of Lacock act
as the authority for the execution of the Burial Acts 1852 to 1906 for
an area comprised within the Parish of Lacock:

51 & 52 Vict. Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Sections 54 and 59 of the Local Govern-
ment Act 1888 and by any other enactments in that behalf do hereby
order that from and after the date of the Act of Parliament confirming
this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression "the commencement of this Order" means
the Ninth day of November One thousand nine hundred
and fourteen;
- (2) The expression "the existing Borough" means the Borough
of Chippenham as it existed immediately prior to the
commencement of this Order;
- (3) The expression "the Borough" means the existing Borough
as extended by this Order;
- (4) The expression "the Corporation" means as the context
requires the Mayor Aldermen and Burgesses of the existing
Borough or of the Borough acting by the Council;
- (5) The expressions "the County" and "the County Council"
mean respectively the Administrative County of Wilts and
the County Council of that County;

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- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Chippenham and the Rural District Council of that District; A.D. 1914.
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- (7) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Chippenham as extended 1914" and sealed with the official seal of the Local Government Board;
- (8) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Chippenham as extended 1914" and sealed with the official seal of the Local Government Board;
- (9) The expression "the added areas" means the parts of the Rural District added to the existing Borough by this Order;
- (10) The expression "the added parts of Chippenham Without" means the parts of that Parish which are coloured blue on the Borough maps and the expressions "the added part of Hardenhuish" and "the added part of Langley Burrell Without" mean respectively the parts of those parishes which are coloured green and brown on the Borough maps;
- (11) The expressions "the existing Parish of Chippenham Within" "the existing Parish of Chippenham Without" "the existing Parish of Hardenhuish" "the existing Parish of Lacock" "the existing Parish of Langley Burrell Within" and "the existing Parish of Langley Burrell Without" mean in each case the parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Chippenham Within" "the Parish of Chippenham Without" "the Parish of Hardenhuish" "the Parish of Lacock" "the Parish of Langley Burrell Within" and "the Parish of Langley Burrell Without" mean in each case the parish as altered by this Order;
- (12) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (13) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

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(14) The expression "the Local Act" means the Local Act passed in the fourth year of the reign of His late Majesty King William the Fourth intituled "An Act for lighting " watching cleansing paving and otherwise improving " the Town of Chippenham in the County of Wilts" and the expressions "the Order of 1870" and "the Confirming Act of 1871" mean respectively the Provisional Order of one of Her late Majesty Queen Victoria's Principal Secretaries of State dated the Thirteenth day of July One thousand eight hundred and seventy and the Local Government Supplemental Act 1871 by which that Order was confirmed ;

(15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906 ;

(16) The expressions "the Chippenham Joint Burial Committee" and "the Chippenham Burial Area" mean respectively the joint committee appointed by the Council of the existing Borough and the Parish Council of Chippenham Without under subsection (2) of Section 53 of the Act of 1894 for the purposes of the Burial Acts and the area within which the Chippenham Joint Burial Committee exercise the powers and duties of the Authority under the Burial Acts ;

(17) The expression "the Lacock Burial Area" means the area within which the Parish Council of the Parish of Lacock act as the authority for the execution of the Burial Acts.

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and fourteen :

Date of
operation of
Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and fourteen and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of
Borough.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so

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as to include in addition to that area so much of the Rural District as comprises the added parts of Chippenham Without the added part of Hardenhuish and the added part of Langley Burrell Without. A.D. 1914.

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(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the Registrar-General to the Board of Inland Revenue to the Commissioners of Customs and Excise and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries. Deposit of
maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund. Copies of
map to be
evidence.

Art. V.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough. Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty arising in the year One thousand nine hundred and fourteen in giving effect to the provisions of this Order

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A.D. 1914. can be obviated or removed by any alteration in or re-arrangement of
Chippenham or any other action affecting the said lists roll and registers that
Order. alteration re-arrangement or action so far as the same may be
 necessary for giving effect to the said provisions shall be made or
 taken by the town clerk of the existing Borough or the clerk of the
 County Council as the case may require and the Overseers of the
 Poor shall render such assistance as may be requisite for the purpose
 of the said alteration re-arrangement or action by the town clerk or
 clerk of the County Council as the case may be and that alteration
 re-arrangement or action shall be deemed to be authorised by the
 provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the
 circumstances so require the Local Government Board may make such
 order as appears to them to be necessary to give effect to the provi-
 sions of this Order and may vary so far as is requisite the provisions
 in force with regard to the said lists roll and registers.

Number of Art. VI. The number of Councillors of the Borough shall be increased
 Councillors from twelve to eighteen and the number of Aldermen of the Borough
 and Alder- shall be increased from four to six.
 men.

Art. VII. Subject to the provisions of the Municipal Corporations
 Acts with respect to the alteration of wards the following provisions
 shall have effect:—

Division into (1) For the purposes of the election of Councillors the Borough
 wards. shall be divided into three wards which shall be named
 respectively the North Ward the South Ward and the West
 Ward:

Boundaries (2) Each of the said wards shall comprise that portion of the
 of wards. Borough which is indicated by a separate colour and distin-
 guished by the name of the ward on the Ward maps:
 (3) Six Councillors shall be assigned to each of the said wards.

Provisions Art. VIII. For the purposes of the election of a town council for
 for election the Borough in pursuance of the Municipal Corporations Acts in the
 of Council- month of November One thousand nine hundred and fourteen the
 lars and following provisions shall apply:—
 Aldermen in (a) The town clerk and the Mayor of the existing Borough or such
 1914. other persons as the Local Government Board shall appoint
 shall perform the duties devolving upon the town clerk and
 Mayor respectively under the Municipal Corporations Acts and
 the Mayor of the existing Borough shall be the returning
 officer at the election for all the wards Provided that the
 Mayor of the existing Borough may appoint some other
 person to act as returning officer at the election for any of
 the wards:

(b) Eighteen Councillors of the Borough shall be elected on the Second day of November One thousand nine hundred and fourteen and six Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred and fourteen :

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—
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Order.

(c) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the Second day of November One thousand nine hundred and fourteen shall go out of office on that date and all the Aldermen of the existing Borough who shall be in office on the Eighth day of November One thousand nine hundred and fourteen shall go out of office on that date and all the said Councillors and Aldermen shall if otherwise qualified be eligible for election as Councillors of the Borough on the Second day of November One thousand nine hundred and fourteen.

Art. IX.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and fourteen in pursuance of this Order shall retire as follows :—

Retirement of
Councillors
and Aldermen
elected
in 1914.

(a) The two Councillors for each ward who are elected by the smallest number of votes on the First day of November One thousand nine hundred and fifteen :

(b) The two Councillors for each ward who are elected by the largest number of votes on the First day of November One thousand nine hundred and seventeen :

(c) The other two Councillors for each ward on the First day of November One thousand nine hundred and sixteen.

(2) The Aldermen elected for the Borough in the year One thousand nine hundred and fourteen in pursuance of this Order shall retire as follows :—

(a) The three Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and seventeen :

(b) The other three Aldermen on the Ninth day of November One thousand nine hundred and twenty.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and fourteen or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman

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A.D. 1914. determine which of the Councillors or Aldermen as the case may be
Chippenham shall go out of office on the dates above specified respectively.
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Local Act Art. X. The Local Act and so much of the Confirming Act of 1871
and Con- as relates to the Order of 1870 shall be wholly repealed.
firming Act.

Byelaws &c. Art. XI. Subject to the provisions of this Order—

(1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed:

(2) All byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas and all orders made by the County Council which are in force therein (so far as the same or similar orders have been or could be made by the Corporation) shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and have not been disapproved by that Council As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District respectively Provided that any proceedings which if this Order had not been made might have been taken by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Rural Council.

Art. XII.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Borough
auditors.

Art. XIII.—(1) Every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Compensa-
tion to exist-
ing officers.

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

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Actions &c.
not to abate.

Art. XIV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XV. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation subject to any rights of the Freemen of the Borough affecting the same for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Art. XVI. Subject to the provisions of this Order—

Property &c.
of Rural
Council.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 :

Cesser of juris-
diction of
Rural Council.

(2) The Rural Council shall cease to exercise any powers or have any duties within any part of the added areas :

Arrears of
rates &c.

(3) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Order are

due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances (if any) shall be paid to the Corporation:

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(4) Any balances in the hands of the Overseers of the Parishes of Chippenham Without Hardenhuish and Langley Burrell Without at the commencement of this Order and any sum collected by them after the commencement of this Order in respect of any rate made before that date and levied upon any rateable hereditament in the added areas shall be a matter for adjustment under Section 62 of the Act of 1888:

Adjustment
of balances.

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction:

Adaptation
of provisions
as to adjust-
ment.

(6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the alteration of the area of any existing parish that section shall have effect—

(A) As if the Overseers of the Parishes of Chippenham Within Chippenham Without Hardenhuish Lacock Langley Burrell Within and Langley Burrell Without were within the meaning of the said section as applied by this Article authorities affected by this Order;

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(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjustment
“ that a separate rate shall be levied in part of a
“ parish only the agreement or award may authorise
“ the making of such a separate rate as if it were
“ a poor rate and as if the part of the parish on
“ which it is to be levied were a whole parish.”

“ (7) Any capital sum paid for the purposes of any
“ adjustment or in pursuance of any order or award
“ of an arbitrator shall be applied by such person
“ in such manner and for such purpose as the Local
“ Government Board may authorise or direct.”

*Mortgage
debts of Cor-
poration.*

Art. XVII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

*Adoptive
Acts.*

Art. XVIII. The provisions of the Infectious Disease (Prevention) Act 1890 and of Parts II. and III. of the Public Health Acts Amendment Act 1890 shall be in force in and apply to the Borough as if the same had been adopted therein.

Art. XIX. Subject to the provisions of any order which the Local Government Board or a Secretary of State may hereafter make—

*Powers under
Section 33 of
Act of 1894.*

(1) The provisions of any order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33 of the Act of 1894 and in that order shall be deemed to

have effect as if any reference in those provisions to the existing Borough or to the existing Parish of Chippenham Within or to the existing Parish of Langley Burrell Within extended and applied to the Borough to the Parish of Chippenham Within or to the Parish of Langley Burrell Within as the case may be :

A.D. 1914.
*Chippenham
Order.*

- (2) The provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing Borough any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

*Powers
under Public
Health Acts
Amendment
Act 1907.
7 Edw. 7.
c. 53.*

Art. XX.—(1) Any managers of public elementary schools in the added parts of Chippenham Without who were appointed by the Parish Council of the existing Parish of Chippenham Without shall vacate office at the commencement of this Order.

*School
Managers.*

(2) For the purpose and subject to the provisions of the Education Acts 1870 to 1911 any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force.

*Education
byelaws.*

Art. XXI.—(1) The part of the existing Parish of Chippenham Without transferred by this Order to the Parish of Lacock shall cease to form part of the Chippenham Burial Area and shall be amalgamated with and form part of the Lacock Burial Area and the Chippenham Joint Burial Committee shall cease to exercise any powers or duties in the said part.

*Alteration of
Burial areas.*

(2) Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order ; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

Art. XXII.—(1) The added parts of Chippenham Without shall be separated from the existing Parish of Chippenham Without and shall be amalgamated with the existing Parish of Chippenham Within.

*Alteration of
parishes.*

[Ch. cxxx.] *Local Government Board's* [4 & 5 GEO. 5.]
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(2) The added part of Hardenhuish and the added part of Langley Burrell Without shall respectively be separated from the existing parishes of which they now form part and shall be amalgamated with the existing Parish of Langley Burrell Within.

(3) The part of the existing Parish of Chippenham Without which is coloured purple on the Borough maps shall be separated from that parish and shall be amalgamated with the existing Parish of Lacock.

*Rural Dis-
trict Coun-
cillors and
Guardians.*

Art. XXIII. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

(1) The number of Guardians for the Parish of Chippenham Within shall be increased from four to five the number of Guardians for the Parish of Langley Burrell Within shall be increased from one to two the number of Rural District Councillors and Guardians for the Parish of Chippenham Without shall be reduced from three to two and the number of Rural District Councillors and Guardians for the Parish of Langley Burrell Without shall be reduced from two to one:

(2) Of the three persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Chippenham Without one to be chosen by the Rural Council by ballot at their meeting held next before the said date shall cease to hold the office of Rural District Councillor but shall continue to act as a member of the Board of Guardians of the Chippenham Union and the said person and the persons who at the said date are the Guardians elected for the existing Parish of Chippenham Within shall be deemed to be the Guardians elected for the Parish of Chippenham Within and shall hold office in that capacity until the date upon which they would have retired if this Order had not been made:

(3) Of the two persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Langley Burrell Without one to be chosen by the Rural Council by ballot at their meeting held next before the said date shall cease to hold the office of Rural District Councillor but shall continue to act as a member of the Board of Guardians of the Chippenham Union and the said person and the person who at the said date is the Guardian elected for the existing Parish of Langley Burrell Within shall be deemed to be the Guardians elected for the Parish

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. cxxx.]
Provisional Order Confirmation (No. 9) Act, 1914.

of Langley Burrell Within and shall hold office in that capacity until the date upon which they would have retired if this Order had not been made : A.D. 1914.
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Order.

- (4) The other persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Chippenham Without and the existing Parish of Langley Burrell Without respectively and the persons who at the said date are holding the said offices for the existing Parish of Hardenhuish and the existing Parish of Lacock respectively shall be deemed to have been elected for and shall represent the Parish of Chippenham Without the Parish of Langley Burrell Without the Parish of Hardenhuish and the Parish of Lacock respectively until the date upon which they would respectively have retired if this Order had not been made.

Art. XXIV.—(1) Subject to the provisions of this Order the Parish Council of the existing Parish of Langley Burrell Without shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Council of the existing Parish of Chippenham Without shall so far as regards the added part of Langley Burrell Without or the added parts of Chippenham Without be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part or parts in each case had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part or parts in each case for the purpose or by virtue of those powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Langley Burrell Without or the added parts of Chippenham Without by virtue of this Order be transferred to and vest in and attach to the Corporation. Parish
Councils.

(2) Subject to the provisions of subsection (1) (a) of Section 1 and of Section 19 of the Act of 1894 the Parish of Langley Burrell Without shall be a parish not having a separate Parish Council and the parish meeting of that parish shall as soon as possible after the commencement of this Order choose a chairman of the parish meeting who until the choice of a successor at the next annual assembly of the parish meeting shall have all the powers duties and liabilities of

[Ch. cxxx.] *Local Government Board's* [4 & 5 GEO. 5.]
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A.D. 1914. a chairman chosen at the annual assembly and the necessary provisions
of the Act of 1894 shall apply accordingly.

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(3) The Parish Councils of the existing Parishes of Chippenham Without and Lacock shall be deemed to have been elected and shall be the Parish Councils for the Parishes of Chippenham Without and Lacock.

(4) The accounts of the Parish Council of the existing Parish of Langley Burrell Without and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made:

•Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the Treasurer of the Borough and shall be a matter for adjustment under Section 62 of the Act of 1888.

Valuation
lists.

Art. XXV. Until new valuation lists are in force—

(1) The portions of the valuation list of the existing Parish of Chippenham Without which relate to hereditaments in the added parts of Chippenham Without shall be deemed to form part of the valuation list of the Parish of Chippenham Within the portion of the valuation list of the said existing parish which relates to hereditaments in the part of the parish included by this Order in the Parish of Lacock shall be deemed to form part of the valuation list of the Parish of Lacock and the remaining portion of the valuation list of the said existing parish shall be deemed to be the valuation list of the Parish of Chippenham Without:

(2) The portions of the valuation lists of the existing Parishes of Hardenhuish and Langley Burrell Without which respectively relate to hereditaments in the added part of Hardenhuish and the added part of Langley Burrell Without shall be deemed to form part of the valuation list of the Parish of Langley Burrell Within and the remaining portions of the valuation lists of the existing Parishes of Hardenhuish and Langley Burrell Without shall respectively be deemed to be the valuation lists of the Parishes of Hardenhuish and Langley Burrell Without.

Art. XXVI.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered :—

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 ———
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Order.

County rate
 basis.

(a) By the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Chippenham Without of such a sum as will represent the annual value of the property in the parts of that parish by this Order included in the Parish of Chippenham Within and by the addition of that sum to the amount appearing therein as the total annual value of the property in the existing Parish of Chippenham Within :

(b) By the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Chippenham Without of such a sum as will represent the annual value of the property in the part of that parish by this Order included in the Parish of Lacock and by the addition of that sum to the amount appearing therein as the total annual value of the property in the existing Parish of Lacock :

(c) By the deduction from the amount appearing therein as the total annual value of the property in the existing Parishes of Hardenhuish and Langley Burrell Without of such a sum in each case as will represent the annual value of the property in the part of the parish by this Order included in the Parish of Langley Burrell Within and by the addition of those sums to the amount appearing therein as the total annual value of the property in the existing Parish of Langley Burrell Within.

(2) For the purposes of this Article the annual value of the property in the part or parts of a parish which is included by this Order in another parish shall be the amount which bears the same relation to the total annual value of the existing parish as the assessable value of the property in the included part or parts of the existing parish bears to the total assessable value of property in the existing parish and the total annual value of the existing parish shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part or parts included in another parish as the case may require.

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Saving for
existing lists
of parliamen-
tary voters
&c.

Art. XXVII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation :

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Settlement
and removal
of the poor.

Art. XXVIII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say :—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Chippenham Within Chippenham Without Hardenhuish Lacock Langley Burrell Within or Langley Burrell Without by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in the existing Parish of Chippenham Within ; or

(ii) in any of the parts of the existing Parish of Chippenham Without included by this Order in the Parish of Chippenham Within ; or

(iii) in the existing Parish of Lacock ; or

(iv) in the part of the existing Parish of Chippenham Without included by this Order in the Parish of Lacock ;
or

(v) in the part of the existing Parish of Chippenham Without which by virtue of this Order will form the Parish of Chippenham Without ; or

(vi) in the existing Parish of Langley Burrell Within ;
or

(vii) in the part of either of the existing Parishes of Hardenhuish or Langley Burrell Without included by this Order in the Parish of Langley Burrell Within ; or

(viii) in the part of the existing Parish of Hardenhuish which by virtue of this Order will form the Parish of Hardenhuish ; or

(ix) in the part of the existing Parish of Langley Burrell Without which by virtue of this Order will form the Parish of Langley Burrell Without

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Order.*

shall be deemed to have acquired or to be in the course of acquiring in the first and second cases a settlement in the Parish of Chippenham Within in the third and fourth cases a settlement in the Parish of Lacock in the fifth case a settlement in the Parish of Chippenham Without in the sixth and seventh cases a settlement in the Parish of Langley Burrell Within in the eighth case a settlement in the Parish of Hardenhuish and in the ninth case a settlement in the Parish of Langley Burrell Without and in each case as if the existing parish or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Chippenham Union by reason of residence—

(i) in the existing Parish of Chippenham Within; or

(ii) in any of the parts of the existing parish of Chippenham Without included by this Order in the Parish of Chippenham Within; or

(iii) in the existing Parish of Lacock; or

(iv) in the part of the existing Parish of Chippenham Without included by this Order in the Parish of Lacock; or

(v) in the part of the existing Parish of Chippenham Without which by virtue of this Order will form the Parish of Chippenham Without; or

(vi) in the existing Parish of Langley Burrell Within; or

(vii) in the part of either of the existing Parishes of Hardenhuish or Langley Burrell Without included by this Order in the Parish of Langley Burrell Within; or

(viii) in the part of the existing Parish of Hardenhuish which by virtue of this Order will form the Parish of Hardenhuish; or

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(ix) in the part of the existing Parish of Langley Burrell Without which by virtue of this Order will form the Parish of Langley Burrell Without

shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the first and second cases in the Parish of Chippenham Within in the third and fourth cases in the Parish of Lacock in the fifth case in the Parish of Chippenham Without in the sixth and seventh cases in the Parish of Langley Burrell Within in the eighth case in the Parish of Hardenhuish and in the ninth case in the Parish of Langley Burrell Without.

Saving for
contribution
orders and
precepts.

Art. XXIX. Notwithstanding the alteration in the areas of parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Chippenham Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXX. All sums in respect of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in any area affected by this Order shall be collected and recovered by the Overseers of the Poor of the Parish in which the hereditament is now situated as if this Order had not been made.

Ecclesiastical
divisions and
charities.

Art. XXXI. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Short title.

Art. XXXII. This Order may be cited as the Chippenham (Extension) Order 1914.

Given under the Seal of Office of the Local Government Board
this Thirtieth day of April One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

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